

SENATE BILL 2161

By Haile

AN ACT to amend Tennessee Code Annotated, Title 39
and Title 40, relative to bail.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 40-11-139(d)(1), is amended by deleting the subdivision and substituting:

(1) If a court issues a bench warrant or a capias due to a defendant's failure to appear on a felony that is violent or sexual in nature as determined by the court, then the defendant shall be placed on any available state or federal list or database as a fugitive from justice, including the National Crime Information Center.

SECTION 2. Tennessee Code Annotated, Section 40-11-139(d)(3), is amended by deleting the subdivision and substituting:

(3) The court may relieve the surety of liability for an undertaking if the defendant has not been placed on the available state or federal list or database within ten (10) business days of the entering agency's receipt of the bench warrant or capias.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.